

BEFORE THE GEORGIA COMPOSITE BOARD OF PROFESSIONAL COUNSELORS,
SOCIAL WORKERS, AND MARRIAGE AND FAMILY THERAPISTS

STATE OF GEORGIA

PROFESSIONAL LICENSING BOARDS

IN THE MATTER OF:

MICHAEL DOWNS MCALLISTER, JR.,
License No. LPC007418,

Respondent.

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NOV 23 2016

2016-2193
DOCKET NUMBER

PUBLIC CONSENT ORDER

By agreement of the Georgia Composite Board of Professional Counselors, Social Workers, and Marriage and Family Therapists ("Board") and MICHAEL DOWNS MCALLISTER, JR., ("Respondent") the following disposition of this disciplinary matter is entered pursuant to the provisions of the Georgia Administrative Procedure Act, O.C.G.A § 50-13-13(a)(4), as amended.

FINDINGS OF FACT

1.

The Respondent is licensed to practice as a licensed professional counselor in the State of Georgia and was so licensed at all times relevant to the matters stated herein.

2.

The Board has received information, which alleged that Respondent, in his role as a professional counselor at Michael D. McAllister, LPC Counseling Services, LLC in Atlanta, Georgia, engaged in a boundary violation with a patient. As a result, the Board opened an investigation.

3.

On or about November 1, 2016, the Board received subpoenaed patient records from Respondent and a copy of a psychological evaluation that Respondent had obtained voluntarily for the purpose of providing information to the Board. During the course of the evaluation,

Respondent admitted to the boundary violation with the patient. The evaluator concluded that Respondent requires psychotherapy, medication management by a psychiatrist, supervision with an experienced clinician, and that Respondent should not see patients in a clinical setting.

4.

Respondent admits the above findings of fact and waives any further findings of fact with respect to the above-styled matter.

CONCLUSIONS OF LAW

The Respondent's conduct constitutes sufficient grounds for the imposition of sanctions upon Respondent's license to practice as a licensed professional counselor in the State of Georgia, under O.C.G.A. Chapters 1 and 10A, Title 43.

ORDER

The Georgia Composite Board of Professional Counselors, Social Workers, and Marriage and Family Therapists, having considered all the facts and circumstances surrounding this case, hereby orders, and the Respondent hereby agrees that the following sanctions shall be imposed upon Respondent's license to practice as a licensed professional counselor in the State of Georgia:

1.

The Respondent's license to practice as a licensed professional counselor shall be indefinitely suspended commencing on the effective date of this Consent Order. During the period of suspension, the Respondent shall not use the title, "LPC" or otherwise engage in the practice of professional counseling. The Respondent is entitled to renew his license during the period of suspension. Failure to do so shall result in the revocation of Respondent's license by operation of law.

2.

The Respondent may petition for lifting of suspension and restoration of his license once Respondent can document that he has successfully completed treatment for professional boundary misconduct from an advocate acceptable to the Board, has enrolled and is participating in any recommended aftercare or monitoring program, and has advocacy to return to practice as a licensed professional counselor by an advocate acceptable to the Board. Said petition shall include a certified copy of Respondent's treatment records and a letter of advocacy from a physician or provider acceptable to the Board as to the Respondent's ability to return to practice with reasonable skill and safety to the public.

3.

Upon consideration of the Respondent's petition, the Board may enter an order lifting the suspension of Respondent's license and placing Respondent's license under terms and conditions it deems necessary to ensure that the Respondent may practice with skill and safety, or the Board may deny Respondent's petition. The Board may require the submission of an updated evaluation by a Board approved evaluator. The Board may require Respondent to meet personally with the Board or a committee thereof regarding his petition. The Board may review the investigative file and all relevant evidence in considering Respondent's petition. Lifting of the suspension of Respondent's license and placing terms and conditions on the license shall be within the sole discretion of the Board. If the Respondent's petition is denied, the Respondent may submit another petition no sooner than six (6) months following the Board's denial of Respondent's prior petition.

In no case will the denial of Respondent's petition be considered a contested case under O.C.G.A. T. 50, Ch. 13.

4.

By executing this Consent Order, Respondent specifically consents to any individuals or entities reporting to the Board information which would affect Respondent's ability to practice as a licensed professional counselor with reasonable skill and safety to patients or which constitutes a

violation of the Professional Counselors, Social Workers, and Marriage and Family Therapists Licensing Law or this Consent Order, notwithstanding any privilege provided by state or federal law. Respondent agrees to provide to the Board any release or other documentation which may be necessary for the Board to obtain such information.

5.

If the Respondent shall fail to abide by all state and federal laws relating to and regulating the practice of licensed professional counselors in the State of Georgia, the Rules and Regulations of the Georgia Board of Professional Counselors, Social Workers, and Marriage and Family Therapists, the terms of this Consent Order, or if it should appear from reports submitted to the Board that the Respondent is unable to practice as a licensed professional counselor with reasonable skill and safety, Respondent's license may be further sanctioned or revoked, upon substantiation thereof.

6.

Approval of this Consent Order by the Board shall in no way be construed as condoning the Respondent's conduct, and shall not be construed as a waiver of any of the lawful rights possessed by the Board.

7.

The Respondent acknowledges that he is represented by counsel, and that he has read this Consent Order and understands its contents. The Respondent understands that Respondent has the right to a hearing in this matter, and freely, knowingly and voluntarily waives such right by entering into this Consent Order. The Respondent understands that this Consent Order will not become effective until approved by the Georgia Board of Professional Counselors, Social Workers, and Marriage and Family Therapists and docketed by the Division Director, Professional Licensing Boards Division. The Respondent further understands and agrees that the Board shall have the authority to review the investigative file and all relevant evidence in considering this Consent Order. The Respondent understands that this Consent Order, once approved and docketed, shall constitute a public record, evidencing disciplinary action by the Board. However,

if the Consent Order is not approved, it shall not constitute an admission against interest in this proceeding or prejudice the Board's ability to adjudicate this matter. The Respondent hereby consents to the terms and sanctions contained herein.

Approved this 23rd day of November, 2016.

GEORGIA COMPOSITE BOARD OF PROFESSIONAL
COUNSELORS, SOCIAL WORKERS, AND MARRIAGE AND
FAMILY THERAPISTS

BY:

Steve Livingston w/ express permission by
STEVE LIVINGSTON, M.F.T. Josh Waters
Chairperson

(BOARD SEAL)

ATTEST:

Lisa W. Durden
LISA W. DURDEN, Director
Professional Licensing Boards Division

CONSENTED TO:

Michael Downs McAllister, Jr.
MICHAEL DOWNS MCALLISTER, JR.
Respondent

[As to Respondent's signature only:]
Sworn to and subscribed before me
This 23rd day of November, 2016.

Joyce Elaine Calloway
NOTARY PUBLIC

My Commission expires

#918576

